

HOUSE No. 2864

The Commonwealth of Massachusetts

PRESENTED BY:

Christopher Hendricks and Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the city of New Bedford Retirement Board to provide certain retirement benefits to Lavar Gilbert.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>1/9/2025</i>
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>2/13/2025</i>
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>5/14/2025</i>

HOUSE No. 2864

By Representative Hendricks of New Bedford and Senator Montigny, a joint petition (accompanied by bill, House, No. 2864) of Christopher Hendricks and Antonio F. D. Cabral (with the approval of the mayor and city council) that the city of New Bedford Retirement Board be authorized to provide certain retirement benefits to Lavar Gilbert, a police detective of said city. Public Service. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the city of New Bedford Retirement Board to provide certain retirement benefits to Lavar Gilbert.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding the provisions of any general or special law to the
2 contrary, the New Bedford Retirement Board is hereby authorized and directed to retire Lavar
3 Gilbert, a police detective of the City of New Bedford, MA., who, as a result of injuries sustained
4 while in the performance of his duties on July 17, 2023, is totally and permanently incapacitated
5 from performing the essential duties of a police officer.

6 The annual amount of pension payable to Lavar Gilbert shall be fixed in an amount equal
7 to the regular rate of compensation which would have been paid had he continued in service as a
8 police detective of the city of New Bedford at the grade held by him at the time of his retirement
9 up until his death or reaching mandatory retirement age whichever comes first. The additional
10 benefits granted herein shall be funded and administered by the New Bedford Retirement Board,
11 consistent with and subject to chapter 32 of the General Laws, except that sections 8 and 91A of

Chapter 32 of the General Laws shall not apply however all amounts paid hereunder shall be non-taxable.

Upon attaining the mandatory retirement age for a New Bedford patrol officer, Lavar Gilbert shall receive a pension pursuant to section 7 of chapter 32 of the General Laws, a yearly amount of pension equal to eighty (80) per cent of the annual rate of the compensation he was receiving on the day before he reaches the mandatory retirement age for a New Bedford police detective.

SECTION 2. Lavar Gilbert shall be entitled to receive indemnification for all hospital, medical and related expenses that have been or may be, incurred after the date of his retirement as a result of the injuries sustained by him while in the performance of his duties on July 17, 2023, according to the provisions of section 100 and section 100B of chapter 41 of the General Laws.

SECTION 3. In addition to the benefits granted herein and upon retirement, Lavar Gilbert shall receive a lump sum from the New Bedford Retirement Board equal to his total accumulated retirement deductions.

SECTION 4. If Lavar Gilbert is married at the time of retirement, then upon his death, should his wife Sandra survive him, the New Bedford Retirement Board shall pay to her an annuity in the amount of three-fourths of the amount of the pension which would have been otherwise payable to him until her death. The pension shall be subject to section 103 of chapter 32 of the General Laws.

SECTION 5. This act shall be effective upon passage.